

notified counsel for Ms. Maschmeier that Plaintiff with withdrawing the subpoena. On May 15, he notified Google of this withdrawal. Plaintiff now argues that the Motion is moot and no sanctions should issue. Plaintiff never argues that the subpoenas were proper or that the required notice was given or consent received. 18 U.S.C. § 2702 (requiring consumer consent prior to disclosure); Code Civ. Pro. § 1985.3 (requiring notice to consumer prior to service of subpoena for personal records).

Ms. Maschmeier responds with citation to *Roe v. Halbig*, 29 Cal.App.5th 286, 305 (2018). Unfortunately, *Roe* construes Code of Civil Procedure section 1987.2(c), which is not at issue here. The parallels with anti-SLAPP law to determine whether a withdrawn subpoena relating to free speech are simply not present here, where there has been no such showing. The Court will instead simply read the words of section 1987.2(a), which notes that reasonable attorney's fees can be awarded if "one or more of the requirements of the subpoena was oppressive." In this case, where the subpoena was clearly improper—both substantively and procedurally—and Plaintiff declined to make any move to withdraw it until the day the opposition was due, sanctions are appropriate. Counsel for Ms. Maschmeier's request for approximately ten hours of work in preparing and filing this Motion is appropriate, as it would not have been necessary absent Plaintiff's service of and failure to timely withdraw a subpoena, which she cannot defend. Sanctions against Plaintiff and her counsel are awarded in the amount of \$4,370.00, payable to Counsel Patton Sullivan Brodehl LLP within 30 days of this Order.

11. 9:00 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

The City's demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before June 8, 2026. Should plaintiff elect not to amend, the time to answer will run from that date.

I. Factual Background

This matter involves allegations of police brutality. Plaintiff, Majerris Walker, alleges that when he called the police for help, they arrived and treated him as if he were a threat. Without provocation or cause, they illegally searched his car and asked him the location of "the gun." When plaintiff asked why the officers were searching his car without probable cause, the police told him he was being detained. One officer pushed plaintiff and when plaintiff questioned why he was being grabbed, all officers tackled plaintiff and used unnecessary violence. One police officer unnecessarily had his car towed.

Plaintiff was arrested and in the police car, the officers asked inappropriate questions in an attempt to create a pretext for the search. Plaintiff was jailed for three days and charged with two misdemeanors. Approximately one year after the incident, plaintiff was granted "arrest relief" under Penal Code 851.93 (charges dismissed or no conviction and record cleared). Still, plaintiff had to pay fees to get his car back, lost his job as the result of the arrest, and was unable to qualify for unemployment because the termination was considered "for cause." Plaintiff had to take out loans,

damaging his credit in the process.

Plaintiff brought suit against the City of Pittsburg and Doe defendants (which include the police officers involved) in November 2024 alleging: (1) Malicious Prosecution, (2) False Arrest / False Imprisonment, (3) Battery, (4) Negligence, (5) Violation of Cal. Civ. Code § 52.1, (6) Intentional Infliction of Emotional Distress, (7) Negligent Hiring, Supervision, and Retention, and (8) Assault.

The Court sustained a previous demurrer with respect to the seventh cause of action, allowing plaintiff leave to amend for two purposes: to attempt to properly state a cause of action for Negligent Hiring, Supervision, and Retention, and also to name the individual officers involved in the incident, which plaintiff stated he had “recently learned.” Plaintiff’s Second Amended Complaint (“SAC”) includes some revisions, but still does not name the officers involved. In response to the SAC, the City filed the present demurrer, which plaintiff opposes.

II. Meet and Confer Efforts

The City’s counsel submits a declaration that on November 11, 2025, he spoke with plaintiff’s counsel by telephone regarding the issues raised on demurrer.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

A complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) While it is true that pleading conclusions of law does not fulfill this requirement, it has long been recognized that the distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. For example, the courts have permitted allegations which obviously included conclusions of law and have termed them 'ultimate facts' or 'conclusions of fact.' What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6, citations omitted.)

IV. Discussion

With respect to the seventh cause of action for negligent hiring, supervision, and retention, the City argues plaintiff still fails to allege sufficient facts demonstrating that the City had knowledge of any alleged incompetence or misconduct of its employees, and that such alleged misconduct was a substantial factor in causing plaintiff’s harm.

Plaintiff’s paragraph 33 alleges as follows, with the italicized text being new to this iteration of the complaint:

33. The Doe officers were employed by Pittsburg and the Pittsburg Police Department. These officer(s) were or became unfit or incompetent to perform the work of a police officer. Their employer knew or should have known that these officers were unfit and incompetent and this caused them to be a serious safety risk to the general public. *Upon information and belief, the City of Pittsburg and their Police Department knew or should have known that these officers had engaged in unlawful arrests without probable cause, retroactively attempted to justify unlawful*

arrests, and inappropriately charged individuals in the past, and that they were continuing to engage in such conduct. Defendants failed to take reasonable steps to prevent further unlawful conduct by these officers whom they had reason to know would continue such conduct. The officers' unfitness and incompetence harmed Mr. Walker and the hiring, supervising, and retention of said officers was a substantial factor in causing Mr. Walker's harm.

Defendants contend the allegation of information and belief is insufficient because it does not provide a factual basis for plaintiff's information and belief. Citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531 and *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, defendants argue that a plaintiff may plead matters on information and belief when the facts are outside his personal knowledge, but he must still plead the information that leads him to believe the allegation is true. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

As noted in the opposition, plaintiff's allegations appear to mirror those in *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, wherein the California Supreme Court upheld the sufficiency of similar allegations, albeit in a very different context (school district's liability for the acts of an employee who was also a sexual predator). The City attempts to distinguish that case based on one sentence that proclaims no liability based on "assumptions or speculation," but the sentence, when read in full, emphasizes the need for evidence, and that is not the stuff of demurrers. (*Id.* at 878.)

The case is notable for what plaintiffs there alleged, however. In *C.A. v. William S. Hart Union High School Dist.*, the allegations on information and belief were alleged to be based on "personnel and/or school records of Defendants [that] reflect numerous incidents of inappropriate sexual contact and conduct with minors by teachers, staff, coaches, counselors, advisors, mentors and others, including incidents involving Hubbell, both on and off the premises of such Defendants." (*Id.* at 866-867.) This contrasts with the complete lack of allegations concerning a basis for plaintiff's belief in the present case.

The City is correct that more is needed here if plaintiff seeks to proceed on "information and belief." This is particularly true given that plaintiff should know, at a minimum (given the deposition of the lead officer), which officers were involved in the incident.

The demurrer to the seventh cause of action is sustained. However. Since the plaintiff seeks leave to amend, which is liberally granted, the Court will allow it.

12. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN THE ALTERNATIVE, JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation ("SVQ") and Eminent Capital Investments, LLC ("ECI"). The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before August 28, 2026 (due to a pending motion to withdraw by plaintiff's counsel, the date is set out further than the usual ten